

Thurlow, after very anxious, frequent, and grave consideration of the subject (a), and have ever since been acquiesced in by the Courts.

(A) **Proportions to be paid by the tenant for life and remainderman.** — “That, as the widow had lived nine years after the expiration of the twelve, leaving nineteen years to run of the twenty-eight, the Master ought to take the sum paid by her for the renewal of the lease as the value of the term purchased, that is, of the term of twenty-eight years, to commence at the expiration of twelve years; he should then consider the value of the term of nine years after the existing term, and what the term of nineteen years after the existing term and the nine years was worth, and the latter was the proportion to be paid by the remainderman” (b). (Upon which resolution Lord Eldon thus comments: — “It was first considered,” he said, “what the interest of the tenant for life was in that term which had to run out at the time of the renewal, and then what benefit the tenant for life had received by the enjoyment of the renewed term from the period when the old term would have expired; and Lord Thurlow determined that the remainderman took that interest in the renewed term which was *ultra* so much of the renewed term as expired in the lifetime of the person who renewed, and the value of that interest he made the remainderman pay” (c).)

(B) **Kind of interest.** — “That as to the *kind of interest* to be allowed, *simple* interest would not be a satisfaction, as the widow had laid out her money totally, and the value of the lease was calculated upon the ground of compound interest: compound interest was therefore to be computed upon the proportional value of the nineteen years’ term to the whole expense of renewal” (d).

* (C) **Rate of interest.** — “That as to the *rate of* [*374] *interest*, in computing compound interest, you go upon the idea that the interest is paid upon the exact day

(a) See *White v. White*, 9 Ves. 560.

(b) See *Coppin v. Fernyhough*, 2 B. C. C. 291; *Barnard v. Heaton*, cited *White v. White*, 4 Ves. 29; *Playters v. Abbott*, 2 M. & K. 108; *Earl of Shaftesbury v. Duke of Marl-*

borough, 2 M. & K. 118; *Lanauze v. Malone*, 3 Ir. Ch. Rep. 354.

(c) *White v. White*, 9 Ves. 558.

(d) See *White v. White*, 4 Ves. 35, 36; *S. C.* 9 Ves. 557, 558; *Bradford v. Brownjohn*, 3 L. R. Ch. App. 711.